TOWNSHIP OF LINCOLN
CLARE COUNTY
175 LAKE GEORGE AVE., P.O. BOX 239
LAKE GEORGE, MI 48633
phone: [989] 588-9841 website: www.lincolntwp.com

Lincoln Township Zoning Board of Appeals

Roger Carey – Chair ***Marshall Swanson*** – Vice-Chair
Cynthia Engelhardt – Secretary ***Tamara McCaslin*** - Member
Jerry Bridges – Township Board Liaison ***Ken Beougher*** - Alternate

Mary Abbott – Zoning Administrator ***Werner Mantei*** – Building Inspector
Deb Sherrod – Recording Secretary

Lincoln Township Zoning Board of Appeals
Regular Meeting
Wednesday, February 13, 2019

The meeting was called to order by Chair Carey at 7:00 pm.

Roll Call:
Present – Board Members: Chair Carey, Secretary Engelhardt, Vice-Chair Swanson, Alternate Ken Beougher
Staff: Zoning Administrator Abbott, Recording Secretary Sherrod
Absent – Bridges, McCaslin, excused due to conflict of interest
Public – 1

Changes to Agenda: Removal of items 19 through 22.

Public Comment: Chair Carey remarked that during this session, any person may speak for up to 3 minutes, and speakers may only speak once.

Approval of Minutes:
Regular Meeting minutes of May 23, 2018 – It was moved by Engelhardt and seconded by Carey to accept the minutes as written. The motion passed with all in favor.

Conflict of Interest Statement (Declare and Cite): No conflict of interest was stated.

Application for Appeal: Application for Appeal was made on December 7, 2018, by Scott Verhelle of 125 E. Reasoner St., Lansing, MI 48906. In regard to a Zoning Permit Denial of an accessory building on property located in Lincoln Township, address, 1748 Lake Dr. Oakdale Resort property number, 010-322-014-00

Public Notice: Notice of public hearing must be posted at least 15 days prior to the hearing. The text as published follows: The Lincoln Township Zoning Board of Appeals will conduct a Public Hearing on Wednesday, February 13, 2019, at 7:00 pm at the Lincoln Township Hall, 175 Lake George Avenue in Lake George, Michigan. The Zoning Board of Appeals will consider the application of Scott Verhelle for the Appeal of a Decision of the Zoning Administrator for property #18-010-322-014-00, in Oakdale Resort on Lake George, located at 1748 Lake Drive, Harrison, Michigan 48625. Written comments may be sent to the Lincoln Township Zoning Board of Appeals, P.O. Box 239, Lake George, MI 48633 or by e-mail: clm@lincolntwp.com and must be received by 5:00 p.m. on Tuesday, February 12, 2019.

The appeal request was posted in the *Clare County Cleaver* (Legal Section) January 24, 2019. Notifications were sent to all property owners within 300 feet of the property for the purpose of public comment being made to the ZBA. The public hearing information was also posted at the township hall.

Denial of Zoning Application:
RE: Property legally described as: T18N R5W SEC 16 1748 LAKE DR LOTS 14 & 15 BLK 2 OAKDALE RESORT ON LAKE GEORGE EXC PART OF LOT 14 BEG AT NE COR S45 DEG 34'47"W ALG E L 50.84 FT TH N01 DEG 35' 33"E 8.88 FT TH N53 DEG 28'25"E 44.88 FT BK TO POB. 2001 BOUNDARY ADJUSTMENT, Parcel Number: 010-322-014-00.

SCOTT VERHELLE
125 E REASONER ST
LANSING, MI 48906

Dear Scott Verhelle:

The recent submittal of your zoning application, for the property located at 1748 Lake Drive, Harrison, MI, which you are the owner of record, has been denied for the following provisions from Lincoln Township's Ordinance 44: Article 2: Section 2.4 A (6), B (b) (2, 3), Article 20: Section 20.9 C (2), and Article 14: Section 14.8 A. Definitions (3) and B. (1).

The reasons are as follows:

Article 2: Section 2.4 Zoning Permit Application and Review Procedures:

A. General Application and Review Procedures:

6. Incomplete Applications: If zoning permit application materials are not administratively complete when received by the body that is to take action on the application, the body may deny such application or otherwise delay action on the application until it is made complete in a readily comprehensible manner.

B. Single Family and Two-Family Dwellings/Plot Plan Approval

b. An accurate, readable, drawing of scale not less than 1" = 30', constituting a plot plan, identifying:

2. A scaled property drawing showing lot lines, dimensions, bearings, lot area, legal description, and an arrow pointing north. The Zoning Administrator may require a property survey prepared by a Michigan-licensed surveyor where conditions are present that necessitate a greater level of detail and/or accuracy regarding the location of property lines and/or buildings, such as in the case of an existing or proposed building in the immediate proximity of a lot line.
3. The location and footprint of existing structures, and the location, height, outline and scaled floor plans of proposed structures to be erected, altered, or moved on the lot. "Footprint" shall be construed to be the outer edges of the structure such as in the case of an exterior wall.

Article 20: Section 20.9,

C. Placement/Setbacks

2. Lot Line Setbacks: Accessory buildings and structures of less than one-hundred twenty (120) square feet in area and ten (10) feet in height shall be set back a minimum distance of five (5) feet from a side and rear lot line. Accessory buildings and structures greater than one-hundred twenty (120) square feet in area and/or greater than ten (10) feet in height shall comply with the minimum side and rear yard setback standards for the

principal building according to the District in which it is located, but in no case shall such setback be less than five (5) feet.

Article 14: Section 14.8 Natural Resource Buffer Areas
A. Definitions: For the purpose of this Section, the following words and phrases shall have the following meanings:
3. Natural Feature Edge: The ordinary high water mark, except that in the case where there exists a bank along the natural feature, where the bank exceeds a slope of ten percent (10%), the natural feature edge shall be considered the top of the bank or a line thirty (30) feet from the ordinary high water mark, whichever is less

B. Natural Feature Setback Required:
1. Buildings and Structures in Excess of Three (3) Feet in Height: Unless otherwise specified in this Ordinance, a natural features setback of sixty (60) feet shall be maintained from the natural feature edge for all buildings, and any structures in excess of three (3) feet in height above the ground below, except that where there exists one (1) or more dwellings located along such natural feature within one hundred fifty (150) feet of a side lot line of the lot on which construction is proposed, the required setback shall be the average setback of such existing dwellings, measured from the natural feature edge. However, in no case shall such natural feature setback be less than twenty-five (25) feet nor shall such setback be required to be greater than sixty (60) feet.
a. Steps, and those portions of unroofed decks and enclosed and unenclosed porches with a floor surface eighteen (18) inches or less above the ground, shall not be considered in determining such average setback. Where only a portion of a dwelling is located within the one hundred fifty (150) foot measured distance, the setback of the entire dwelling shall be used for determining such average setback.

If you feel we have made an error in the above decision, you have the right to appeal the Zoning Administrator's decision with the Zoning Board of Appeals

Purpose: Resident filed for a zoning permit on date September 4, 2018 and was denied permit. Application for Appeal was made on December 7, 2018 by Scott Verhelle of 125 E. Reasoner St. Lansing, MI 48906. In regard to a Zoning Permit Denial of an accessory building on property located in Lincoln Township, address, 1748 Lake Dr. Oakdale Resort property number, 010-322-014-00. The following is Scott Verhelle's reason for Appeal:

Scott Verhelle Property Address:
1748 Lake Drive, Harrison, MI 48625

ZBA Request Narrative:
I am not asking for a variance as I am just appealing the decision of the zoning administrator. I was denied my zoning application without being given any specific reason as to why. The zoning administrator simply copied and pasted various sections from Ordinance 44 without explaining how my application was not in compliance with each section. Furthermore, I was not given any suggestions for modifying my building plans to be in compliance. The entire process for my zoning application and ultimate denial took three months. My final zoning application will show a date sooner than that, but this was the third revision to the original application.
Issue 1.
This needs clarification in the zoning language. I do have just enough room on my lot to have 10 feet setbacks on both sides, and that is how my zoning application was sent. But I would prefer to move the building over some if my interpretation of the language is correct.
Section 20.9 Accessory Structures and Buildings:
C. Placement/Setbacks:
2. Lot Line Setbacks:
...Accessory buildings and structures greater than 120 square feet in area and/or greater than 10 feet in
height shall comply with the **minimum side and rear yard setback standards for the principal building**
according the district in which it is located, but in no case shall such setback be less than 5 feet.
To determine the minimum side and rear yard setback standards for the principal building you go to table 3-4 Site Development Requirements. For the R-2 district it shows a side setback of 10 feet along with the footnote number 6. Footnote number 6, b. R-2 and R-2A: Side yard setbacks for principal buildings in the R-2 and R-2A Districts shall be 10' except that in the case of a lot recorded with the County Register of Deeds prior to the effective date of this Ordinance, that does not have a minimum lot width of 100 feet at some point measured between the normally required front and rear yard setback distances according to Table 3-4, each required minimum side yard setback shall be equal to 10% of the lot width but in no case shall a side yard setback be less than 5 feet. My lot is less than 100 feet wide.
The zoning administrator argues that footnote 6 does not apply to accessory structures because it has the word "principal building" in the language (bolded above). If that is the case, then how can you use table 3-4 at all for accessory structures as that table says it only applies to principal buildings? Section 20.9 says to refer to the principal building setbacks — and that setback includes footnote 6.

You can't pick and choose which parts of the principal building setback you are going to apply.

Issue 2.
Section 14.8 Natural Resource Buffer Areas
The zoning administrator is completely ignoring the 150 foot rule for neighboring dwellings in section 14.8, B. 1. In this section it says you take the average distance from the natural feature edge of all neighboring dwellings within 150 feet of each side lot line of the proposed structure. The zoning administrator wants to apply a 60 foot setback from the natural feature edge which in turn creates a total distance of 90 feet from the high water mark of Lake George. (My lot has a bank slope greater than 10%.) If you are going to require 60 feet plus another 30 feet for the natural feature buffer, that effectively makes almost every lot on Lake George unbuildable. The majority of the lake front lots are less than 125' in depth. 125' minus 90' for the lake setback minus 25' for the road setback leaves you with 10 feet of buildable space.
My proposed pole barn is 57 feet from the high water mark of Lake George. This can also be stated as 27 feet from the natural feature edge. Here are all of the measurements of the neighboring dwellings within 150 feet:
Distance from high water mark of Lake George:
(all dwellings have a bank with a slope greater than 10%)
1770 —37 feet
1766 —58 feet
1760 — 80 feet
1748 —52 feet (my house)
1734 — 30 feet
Average from high water mark = 51.4 feet
Average from natural feature edge = 21.4 feet
These measurements include decks with the height of 18 inches or higher as described in 14.8, B.1.A. In that section it mentions you do not count decks that are under 18 inches in height.
As you can see, my distance of 57 feet is even greater than the average distance of neighboring dwellings within 150 feet. I am well within compliance of ordinance 44 Natural Resource Buffer Areas.
To recap:
My proposed pole barn is 28' x 40' with gambrel trusses with an 8' deck running along the
front/lakeside. The total building height will not exceed 22 feet. The deck will have a surface area for

the ground floor and the upper attic level. That makes the total footprint of 28' x 48'.
My side distances are 10' or greater on both sides.
I am more than 25' from the road.
I am 57' from the high water mark of Lake George, 27' from the natural feature edge.
I see no reason why my zoning application was denied.

Chair Opens Public Hearing

Correspondence & Communications to ZBA: None

Presentation by Lincoln Township Zoning Administrator:
ZBA Appeal Request: Mr. Scott Verhelle
Property Address: 1748 Lake Street Harrison. MI 48625 in R-2 District
Parcel Number:010-322-014-00 (T18n R5w Sec 16 1748 Lake Dr. Lots 14 & 15 Blk. 2 Oakdale Resort on Lake George)
PROJECT PROPOSAL
Received a zoning application from Mr. Scott Verhelle for the property located at 1748 Lake Street, Harrison, the proposed structure with an upper and lower deck. The accessory building dimensions are a 28' x 40' accessory building with a height of 22 ft., and an upper and lower deck each having dimensions of 8' x 28' located on lot 14. The property has a slope greater than 10 percent and exception approximately 8' for lot 13.
SUMMARY:
Mr. Verhelle's site plan does not comply with the required setbacks. Mr. Verhelle did not disclose the 8' exception for lot 13 and only provided the land survey after he was questioned. Because Mr. Verhelle does not live at the site, it hard to meet with him. so we corresponded by email, and phone calls. There were several site visits to the property because the proposed accessory building and deck was not staked out or it was not clear where it was going to be placed. After meeting with him, it was explained the site plan did not comply with the requirements in Lincoln Township's Ordinance 44. I explained to him the application would be was denied. Mr. Verhelle asked me not to deny the application and agreed to modify the proposed structure from 40 feet to 30 feet in order comply for the slope and revised the application and site plan. An error was found in the calculations on the site plan, the length of the lot line on the east side of the property did not match it with the townships plat map or the land survey. A miscalculation was found with the approximately 13 feet. This is when I suggested to Mr. Verhelle to place the building at the top of the bank and exclude the upper and lower deck. The

appellant sent an email asking to deny the zoning application explaining he would appeal the Zoning Administrator decision to build the 28' x 40' building and deck he wanted. On or about September 4, 2018 the appellant sent the revised zoning application with the changes for the appeal, it was determined the application could not be approved for the following reasons:

Article 2: Section 2.4 Zoning Permit Application and Review Procedures:

A. General Application and Review Procedures:

6. Incomplete Applications: If zoning permit application materials are not administratively complete when received by the body that is to take action on the application, the body may deny such application or otherwise delay action on the application until it is made complete in a readily comprehensible manner.

B. Single Family and Two-Family Dwellings/Plot Plan Approval

b. An accurate, readable, drawing of scale not less than 1" = 30', constituting a plot plan, identifying:

2. A scaled property drawing showing lot lines, dimensions, bearings, lot area, legal description, and an arrow pointing north. The Zoning Administrator may require a property survey prepared by a Michigan-licensed surveyor where conditions are present that necessitate a greater level of detail and/or accuracy regarding the location of property lines and/or buildings, such as in the case of an existing or proposed building in the immediate proximity of a lot line.

1. The location and footprint of existing structures, and the location, height, outline and scaled floor plans of proposed structures to be erected, altered, or moved on the lot. "Footprint" shall be construed to be the outer edges of the structure such as in the case of an exterior wall.

Article 20: Section 20.9, Accessory Structures and Buildings

C. Placement/Setbacks

3. Lot Line Setbacks: Accessory buildings and structures of less than one-hundred twenty (120) square feet in area and ten (10) feet in height shall be set back a minimum distance of five (5) feet from a side and rear lot line. Accessory buildings and structures greater than one-hundred twenty (120) square feet in area and/or greater than ten (10) feet in height shall comply with the minimum side and rear yard setback standards for the principal building according to the District in which it is located, but in no case shall such setback be less than five (5) feet.

Article 14: Section 14.8 Natural Resource Buffer Areas

A. Definitions: For the purpose of this Section, the following words and phrases shall have the following meanings:

2. Natural Feature Edge: The ordinary high-water mark, except that in the case where there exists a bank along the natural feature, where the bank exceeds a slope of ten percent (10%), the natural feature edge shall be considered the top of the bank or a line thirty (30) feet from the ordinary high-water mark, whichever is less

B. Natural Feature Setback Required:

1. Buildings and Structures in Excess of Three (3) Feet in Height: Unless otherwise specified in this Ordinance, a natural features setback of sixty (60) feet shall be maintained from the natural feature edge for all buildings, and any structures in excess of three (3) feet in height above the ground below, except that where there exists one (1) or more dwellings located along such natural feature within one hundred fifty (150) feet of a side lot line of the lot on which construction is proposed, the required setback shall be the average setback of such existing dwellings, measured from the natural feature edge. However, in no case shall such natural feature setback be less than twenty-five (25) feet nor shall such setback be required to be greater than sixty (60) feet.

a. Steps, and those portions of unroofed decks and enclosed and unenclosed porches with a floor surface eighteen (18) inches or less above the ground, shall not be considered in determining such average setback. Where only a portion of a dwelling is located within the one hundred fifty (150) foot measured distance, the setback of the entire dwelling shall be used for determining such average setback.

LIST OF ATTACHMENTS

a. Attachment A: Copy of appellant's revision for zoning application received on September 5, 2018.

b. Attachment B: Denial Letter dated September 7, 2018 with reasons of denial.

c. Attachment C: Correspondence and photos

d. Attachment D: Acknowledgement of Variance Application.

BACKGROUND SUMMARY

I. Article 2: Section 2.4 the plot plan did not indicate the correct lot dimensions on the drawing. According to the Lincoln Township's plat map the shared lot line between Mr. Verhelle and the neighbors side depth measurements of lot 14 indicates 133 ft., and after adding up the setbacks and the proposed structure's dimensions on the appellant plot plan it illustrates 146 ft., approximately 13 feet greater than recorded on the plat map. These calculations which the appellant provided on the plot plan and clearly show the appellant's setbacks are not accurate. Showing a miscalculation of 13 feet from proposed structure to the Ordinary High-Water Mark.

. In Article 14: Section 14.8 Natural Resource Buffer Areas (A, B) applies to the property because it has a slope greater than 10 percent and the natural feature setback of sixty (60) feet shall be maintained
from the natural feature edge for all buildings, and any structures in excess of three (3) feet in height above the ground below. The appellants 61 feet on the plot plan would put the front setback at 51 feet, less than the required setback in Section 14.8 provision for Natural Feature Setbacks.

III. This would also include Article 20: Section 20.12 Setback Exceptions for Residential Outdoor Living Areas (C) explains, no modification of a required setback is permitted under this Section that results in noncompliance with the natural resource buffer area provisions of Section 14.8.
IV. In Section 20.9 C (2), Accessory buildings and structures greater than one-hundred twenty (120) square feet in area and/or greater than ten (10) feet in height shall comply with the minimum side and rear yard setback standards for the principal building according to the District in which it is located, but in no case shall such setback be less than five (5) feet. The road on Lake Street is narrow and difficult for one vehicle to drive through and the 25 ft. required setback should be maintained for public health, welfare and safety. Also, in Article 20: Section 20.9 D, it clearly states; in residential districts, the minimum required setback of Table 3-4 shall be increased by one (1) foot for each one (1) foot of building height in excess of fifteen (15) feet and the building height is greater than 15 feet.

Presentation by the Petitioner: Mr. Verhelle stated that his biggest argument is with the natural feature setback which he sees is under reconsideration by the Planning Commission. He disagrees with ZA Abbott's judgement about the decks. He included the calculations which show that his deck would be within the ordinance. He states that he is at 57 feet with the average being below that. His neighbors look like they are farther away from the lake but his looks closer since he is on a peninsula which makes the difference in appearance.

He also stated in Issue 1 that it does not apply to his situation as he has enough room with 10 feet on both sides. He also objects to principal structure standards being applied to his accessory building.

On other areas that ZA Abbott mentioned, he is unclear what those refer to. He included drawings with his application.

ZBA Members Comments & Questions:
None at this time.

Public Comment: Chair Carey states: At this time I will allow public comments, only agenda items, (All comments shall be addressed to the Chair)

a. Each speaker shall give name and address.
b. A time limit may be imposed; I'm giving each speaker 5 minutes to speak.

Chair reserves the right to terminate a presentation or ask for summation if comments are repetitive.

Public Comment Closed by Chair

ZBA Members Comments & Questions:
Engelhardt questioned what she sees to be a discrepancy between the paper work presented and the presentation by Mr. Verhelle. Chair Carey explained to her satisfaction. Discussion followed to clarify the exact purpose of this hearing since it is an appeal of the zoning administrator rather than a request for variance.

ZBA Members Finalize:
Prior to the final decision, Chair Carey explains that after we make and accept the motion, the applicant may wait to receive a final decision paper for court purposes. If the applicant does not wait around for the final decision paper, the decision will not be final until after the next ZBA meeting.

Then Chair Carey read the following statement to Mr. Verhelle:

"Please note and be aware, this is our findings of the Appeal Application. This is not an Interpretation of the Ordinance.
In regard to the Zoning Permit that was denied by the Zoning Administrator. You ask for clarity.
In Section 20.9, paragraph c-2 it says: **2. Lot Line Setbacks: Accessory buildings and structures of less than one-hundred twenty (120) square feet in area and ten (10) feet in height shall be set back a minimum distance of five (5) feet from a side and rear lot line. Accessory buildings and structures greater than one-hundred twenty (120) square feet in area and/or greater than ten (10) feet in height shall comply with the minimum side and rear yard setback standards for the principal building according to the District in which it is located, but in no case shall such setback be less than five (5) feet.**

b. **R-2 and R-2A Districts: Side yard setbacks for principal buildings in the R-2 and R-2A Districts shall be 10' except that in the case of a lot recorded with the County Register of Deeds prior to the effective date of this Ordinance, that does not have a minimum lot width of one-hundred (100) feet at some point measured between the normally required front and rear yard setback distances according to Table 3-4, each required minimum side yard setback shall be equal to ten percent (10%) of the lot width but in no case shall a side yard setback be less than five (5)**

feet. Side yard setbacks for corner lots shall comply with Footnote 6(a) above.

7.a. <u>R-2 and R-2A Districts:</u> <u>Rear yard setbacks for principal buildings</u> in the R-2 and R-2A Districts shall be 25' except that in the case of a lot recorded with the County Register of Deeds prior to the effective date of this Ordinance, that has a lot depth of less than one-hundred (100) feet, the minimum required rear yard setback shall be equal to 25% of the lot depth, but in no case shall a minimum required rear yard setback be less than twenty (20) feet.

To determine the setbacks for a Principal Building and an accessory building larger than 120 square feet, you go to Table 3-4, Site Requirements. It says setbacks for R-1 and R-2 for the front yard is 50 feet, for the side yard it is 10 feet and for the back yard it is 25 feet. Section 3.4 applies to Principle Buildings and Accessory Buildings. Footnotes for Table 3.4, Paragraph 6b and 7a state for Principle Buildings, means it only applies to the Principle Buildings it does not say Accessory Buildings, so it does not apply to accessory buildings.

As for Section 2.4/6 Zoning Permit Application and Review Procedures Incomplete Applications: If zoning permit application materials are not administratively complete when received by the body that is to take action on the application, the body may deny such application or otherwise delay action on the application until it is made complete in a readily comprehensible manner.
As we see it your application is incorrect. According to your abbreviated assessment card your average lot depth is 135 feet. According to the township plat map the west side of your lot is 133 feet and the east side of your lot is 137 feet. As you have not included the road in your plot plan, we are assuming all your measurements are from your lot line.
According to your plot plan measurements on the west side of your building, the setback from your property line is 41 feet, your building is 40 feet, your deck is 8 feet and the setback from the lake is 57 feet. This totals 146 feet. On the east side, the setback from your property line is 26 feet, the building is 40 feet, the deck is 8 feet and the setback from the lake is 64 feet. This totals 138 feet, both numbers are larger than the actual size of your lot.
You then ask for clarity of 14.8: First regarding the 150-foot rule for neighboring dwellings, as we see it, in your case as your accessory building is on lot 14 the measurements would start on lot 15, 16 and 17 on one side and lot 11, 12 and 13 on the other side. The following measurements are from the Natural Feature Setback. Lot 13 the dwelling is setback 50 feet, lot 12 the dwelling is setback 44

and lot 11 the dwelling is setback 4.6 feet. Lot 15 your dwelling is setback 52, lot 16 and 17 belong to the same person and the dwelling is setback 10 feet. According to how we read this, you add these together and divide by 5, you get 26.1 plus 30 natural feature setback, equals 56.1, which is what your setback would start at. According to our Ordinance, the required setback shall be the average setback of such existing dwellings from the Natural Features Setback.
Building Height from our Ordinance 20.9 paragraph d: Height: Accessory buildings and structures in all districts shall comply with the maximum height standards of the principal structure on the lot according to Table 3-4 of Article 3, except that in the case of Residential Districts, the maximum height shall be twenty-five (25) feet. In the case of Residential Districts, the minimum required setback of Table 3-4 shall be increased by one (1) foot for each one (1) foot of building height in excess of fifteen (15) feet. See definition of "building height" in Article 21.
Building Height: The vertical distance measured from the average finished grade along the front of the building where it abuts the front yard to the highest point of the roof surface, except as follows: to the deck line of mansard roofs, and the average height between eaves and the ridge of gable, hip, and gambrel roofs. See Figure 21-4 at end of this Article.
This would add some footage to the setback.
From figure 21.3 building heights as your garage is Gambrel the building height would be half the distance from the eave to the top of the roof. 12 feet divided by 2 equals 6 feet. You would then add the 6 feet to your setback, 56.1 plus 6 is 62. Your setback would be 62.1 feet, Natural Feature Setback 30 feet and average setback 32.1
As for the 25-foot rear setback, the rear setback is from the road right of way and your road right of way is 33 feet, 16 feet from the middle of the road on each side. As you have found a survey stake, the setback would be 25 feet from the stake. As we see it your set back violates the Ordinance setback."

Motion: Carey made the following motion:
Regarding the appeal of the Zoning Administrators denial of the Zoning Permit. I entertain a motion that the Zoning Board of Appeals uphold the Zoning Administrators denial of the Zoning Permit filed on 9/4/2018, by Scott Verhelle of 125 E. Reasoner St., Lansing, Michigan, for an Accessory Building to be located at 1748 Lake Dr. Lincoln Township, Property number 010-322-014-00, Section 16, Oakdale Resort, Block 2, Lot 14.
The reason for upholding the denial is under Incomplete Applications, Section 2.4, paragraph 6. According to your assessment card, your average lot size length is 135 feet. The west side lot line is 133 feet, the east side is 137 feet. According to

the plot plan measurements, the west side of your building road front setback is 41 feet, your building and deck are 48 feet and your lakeside setback is 57 feet. When you add these numbers together you get 146 feet, this is 13 feet larger than your lot. On the east side your building road front setback 1s 26 feet, your building and deck are 48 feet and your lakeside setback is 64 feet. When you add these together you get 138 feet which is 1 foot larger than your lot size.
According to Section14.8/B paragraph 1 and 1a, after much research, considering the 30-foot Natural Features Setback, and the average setback of all the dwellings within 150 feet, we came up with a setback of 56.1 feet plus the following. According to Section 20.9, paragraph D, Height: Accessory buildings and structures in all districts shall comply with the maximum height standards of the principal structure on the lot according to Table 3-4 of Article 3, except that in the case of Residential Districts, the maximum height shall be twenty-five (25) feet. In the case of Residential Districts, the minimum required setback of Table 3-4 shall be increased by one (1) foot for each one (1) foot of building height in excess of fifteen (15) feet. See definition of "building height" in Article 21. Building Height: The vertical distance measured from the average finished grade along the front of the building where it abuts the front yard to the highest point of the roof surface, except as follows: to the deck line of mansard roofs, and the average height between eaves and the ridge of gable, hip, and gambrel roofs. See Figure 21-4 at end of this Article. This would add 6 feet to your setback, making your total setback of 62.1 feet. Your plot plan shows your setback as 64 feet on the East side and 57 feet on the west side. Thus, your proposed building is encroaching on required setbacks and is not in compliance with our zoning ordinance.

Swanson Seconded.

Roll Call Vote:
Beougher: **Yes;** Carey: **Yes;** Engelhardt: **Yes;** Swanson: **Yes**

Motion Passes: 4 Yeas; 0 Nays Appeal is Denied**.**

Public Comment: None

Adjournment: Engelhardt made a motion to adjourn; Swanson seconded. Motion passed with all in favor. Meeting adjourned at 7:45 pm.

Respectfully Submitted,

Cindy Engelhardt, Secretary